IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V

Item No.-1

CA (CAA) No. 92/230/232/PB/2021

IN THE MATTER OF:
J.H Jewels Pvt.Ltd. & Anr. With Dynamic Enclave Pvt. Ltd. **....Applicant**

SECTION
U/s 230-232

Order delivered on 14.03.2022

CORAM:
SHRI ABNI RANJAN KUMAR SINHA
HON'BLE MEMBER (JUDICIAL)

SHRI HEMANT KUMAR SARANGI,
HON'BLE MEMBER (TECHNICAL)

PRESENT:
For the Applicant :
For the Respondent :

ORDER

None appeared for the applicant. The applicant is directed to submit the clarification, within a week; on the following points:

1. That, in relation to the Transferor Company Nos. 1 to 4, Auditor's certificate for compliance under Section 133 of the Companies Act, 2013 is not on record.
2. That, in relation to the Transferee Company, list of shareholders is not on record. (Pg. No. 294)
3. That in relation to all the Applicant Companies, separate lists of Secured Creditors and Unsecured Creditors is not on record. (Pg. No. 299)
4. That, in relation to all the Applicant Companies, latest Financial Statements of 31.03.2021 are not on record.
5. That, in relation to the Applicant Companies, the affidavit required under Section 230(2)(a) in respect of pendency of investigation or inquiry, is not on record.

6. That, in relation to the Applicant Companies, the affidavit stating that the Scheme does not contemplate any reduction of share capital and corporate debt is restructuring exercise as contemplated under Section 230(2) of the Act, is not on record.
7. That, in relation to all the Applicant Companies, the Petitioner shall be directed to bring on record the total number of shareholders, secured creditors and unsecured creditors and the percentage of consent given to the Scheme in a tabulated format. Further, all the consent affidavits shall be re-filed.

List on **08.04.2022.**

Sd/-

(HEMANT KUMAR SARANGI)
MEMBER (T)

Sd/-

(ABNI RANJAN KUMARSINHA)
MEMBER (J)

Md Saddam